Before the Department of Workforce Services
Unemployment Compensation Appeals

DIVISION OF ADJUDICATION

In the Matter of the Claim of :

Peter Golub :

for :

Unemployment Insurance Benefits

REPORTER'S TRANSCRIPT

Hearings conducted by telephone from the office of the Administrative Law Judge located at 140 East 300 South, Salt Lake City, Utah, on July 8, 2025; same being pursuant to the Notice of the Administrative Law Judge of the Department of Workforce Services.

Before HON. Judge Gibbs
Administrative Law Judge

APPEARANCES:

Peter Golub, Claimant

Nate Trujillo, Employer
Wyatt Bentley, Employer Witness
DeMarie Hoover, Employer Witness

Reported by Kanchan Mutreja

SYSTEM VOICE: Thank you for calling Employer Advocates. For a first name directory, please press pound two, or if you know your party's extension, you may dial it at any time. Our office hours are from 8:00. Dialing.

EMPLOYER: Employer Advocates, this is Nate.

JUDGE: Mr. Trujillo, this is Judge Gibbs with the Department of Workforce Services with the State of Utah calling for the Unemployment Insurance Appeal hearing in the matter of Peter Golub and Granite School District.

And I have a note here indicating you have a witness that needs to be called. Looks like I have the name of DeMarie Hoover. Is that right?

EMPLOYER: That is correct, yes.

JUDGE: All right.

EMPLOYER: Also Wyatt Bentley [phonetic].

JUDGE: Okay. Will they be at the same number?

EMPLOYER: They will, yes.

JUDGE: Okay.

EMPLOYER: I don't know if I gave you Wyatt's number or DeMarie's, but they will be at Wyatt's number.

JUDGE: Okay, I don't have that one. So tell me that number.

EMPLOYER: Yeah, it's 385-646-4237.

JUDGE: All right. Hold on just a moment.

EMPLOYER: Okay.

SYSTEM VOICE: Hello, you have reached the office of Wyatt Bentley. Please leave your name, number, and a brief message, and I will return your call. Thank you. Have a beautiful day.

JUDGE: That didn't work. Should I try DeMarie Hoover's number? Sorry, Mr. Trujillo, are you there?

SYSTEM VOICE: Thank you for calling Employer Advocates. For a first name directory, please press pound two, or if you know your party's extension, you may dial it at any time. Our office

hours are from 8:30 to 5:00. We are closed for an hour lunch. Dialing.

EMPLOYER: Employer Advocates, this is Nate.

JUDGE: Sorry about that, Mr. Trujillo. There's a trigger, a hair trigger on this drop button, I guess. It dropped both you and the call when I was trying to reach Mr. Bentley. Do you want me to try that number again or do you want me to try the number of DeMarie Hoover? It just went through to his voicemail.

EMPLOYER: Yeah, we can try DeMarie or I have a cell number for Wyatt.

JUDGE: Okay. Either one. Whatever number you want me to try, I'll try that one.

EMPLOYER: Yeah, they were supposed to be available the first…

JUDGE: Okay, I can try that again. Maybe they just didn't get to the phone. So let me try that again.

EMPLOYER: Okay.

UNIDENTIFIED PERSON: Hi, this is Stephanie.

JUDGE: Yes, this is Judge Gibbs with the Department of Workforce Services from the State of Utah. Can I speak with Wyatt Bentley or DeMarie Hoover, please?

UNIDENTIFIED PERSON: Yeah, hold on. I think Wyatt's phone is still forwarded to mine. So hold on. Hold on, okay.

JUDGE: All right, thank you.

UNIDENTIFIED PERSON: All right, are you still there?

JUDGE: Yes.

UNIDENTIFIED PERSON: Okay, we got his phone unforwarded. Now I'm going to send him to, they're in there waiting. Okay. Anyway, I'm putting him back. Hold on.

JUDGE: All right.

UNIDENTIFIED PERSON: You're welcome.

EMPLOYER WITNESS: Hello, this is Wyatt Bentley.

JUDGE: Mr. Bentley, this is Judge Gibbs with the Department of Workforce Services from the

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State of Utah calling for the Unemployment Insurance Appeal hearing the matter, Peter Golub. And I want to let you know that I have the employer's representative, Mr. Nate Trujillo, online with us. Do you also have DeMarie Hoover present with you?

EMPLOYER WITNESS: I do, yes.

JUDGE: All right. Thank you. Let me go ahead and call the claimant and then we'll begin. Hold on just a moment.

EMPLOYER WITNESS: Thank you.

CLAIMANT: Hello.

JUDGE: Hi, can I speak with Peter Golub, please?

CLAIMANT: This is him.

JUDGE: Mr. Golub, this is Judge Gibbs with the Department of Workforce Services from the State of Utah calling for the Unemployment Insurance Appeal hearing. I want to let you know that I have the employer on the line with this as well.

I have the employer's representative, Mr. Nate Trujillo, as well as witnesses for the employer, DeMarie Hoover and Wyatt Bentley.

And I want to begin the hearing today by reading an opening statement into the record and then I'll explain the procedures we will follow during the course of the hearing as well as the issues that are before me in the hearing today

And I will give both parties an opportunity to ask any questions that you may have as we go forward.

We are on the record in the matter of Peter Golub and at Granite School District. This hearing is being held by telephone at the Department of Workforce Services Office on July 8th, 2025 at approximately 12:35pm.

The Administrative Law Judge is Judge Gibbs. The claimant filed a timely appeal from an apartment representative's decision denying unemployment insurance benefits on the grounds the claimant quit his job without good cause and a denial of benefit would not be contrary to equity and good conscience.

I want the record will reflect the parties are participating in this hearing by telephone. The claimant Mr. Golub, is on the line at this time. Mr. Golub, anyone else beside yourself participating for you in the hearing today?

CLAIMANT: No, Judge.

JUDGE: All right, the employer is present by telephone, the employer's representative, Mr. Nate Trujillo and witnesses for the employer, DeMarie Hoover and Wyatt Bentley. Anyone else participating for the employer in the hearing today, Mr. Trujillo?

EMPLOYER: Nobody else, Your Honor.

JUDGE: All right, well, let the parties know that this hearing is being recorded and your testimony will be taken under oath as required by law. There will not be another hearing in this matter, so make sure you present all evidence you would like to during the hearing today.

And I want to explain the issues that are before me in the hearing today. The first issue that I'll address is whether the claimant quit his job for good cause or was discharged for just cause.

When we get to the testimony portion of the hearing, I'll begin with the claimant's testimony first. I'll place him under oath and ask him questions about his separation from the employer.

After I've completed my questioning. Mr. Trujillo would have the right to ask questions of Mr. Golub as well. I'll then take testimony from the employer. I'll place witnesses for the employer under oath and ask them questions about the claimant separation from the employer.

And after I've completed my questioning, Mr. Trujillo would have the right to ask the employer's witnesses any questions that he may have of them, following my Mr. Golub having that right as well.

Before taking testimony, I will go through the documents that were used in the original department decision. I'll identify them for the recording, give them an exhibit number, and propose they be entered into the hearing record. Any questions about how we will proceed with the hearing at this point, Mr. Golub?

CLAIMANT: No, Your Honor. I tried to submit several exhibits. I attached them yesterday. I tried to email them earlier, but then I saw that they had not, that email address didn’t work. And I was wondering if that could be submitted into the record.

JUDGE: Did you submit copies to the employer as well?

CLAIMANT: Well, so yeah, so I tried, so I did, I did try to do that. But looking at my email, it looks like that entire, that entire email didn't get sent to anyone. And then I attached it today. But I do understand that if it was not submitted to the employer in a timely manner, then I will possibly make reference to certain arguments made in connections with those

exhibits, but if we cannot submit them then I think that's it.

JUDGE: Right. I hadn't seen them come into our office or at least attached to your case by this morning either. So I haven't seen them and it doesn't sound like the employer's seen them.

So I can't enter them into the hearing record. But you can refer to them and your testimony under oaths will be just as, you know…

CLAIMANT: Yes, Your Honor.

JUDGE: As credible or as relevant as the documents themselves. If I were to find that some document that you wanted to submit is absolutely critical to the issue that's before me in the hearing today.

I could consider rescheduling or continuing the hearing until later day to get those documents admitted into the record. But until that time, I'll just allow you to testify about that anything that's in them or the documents themselves. Okay.

CLAIMANT: Yes, Your Honor.

JUDGE: Any other questions about how we will proceed with the hearing at this point, Mr. Golub?

CLAIMANT: No, Your Honor.

JUDGE: Any questions about that, Mr. Trujillo?

EMPLOYER: No questions.

JUDGE: All right. And I want to go ahead and go through the documents. They are marked as exhibits on the bottom center portion of the documents. They're marked as exhibits one through 18.

These were sent to the claimant electronically in his electronic correspondence on his claim and mailed to the employer's representative along with the notice of the hearing. Did you receive a copy of the documents, Mr. Golub?

CLAIMANT: Yes, Your Honor.

JUDGE: All right. And did the employer as well, Mr. Trujillo?

EMPLOYER: Yes, Your Honor, we received and reviewed.

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JUDGE: All right. All right. Before going through them, I want to place the parties under oath. Mr. Golub, do you solemnly swear or affirm that the testimony you will give will be the whole truth and nothing but the truth?

CLAIMANT: Yes.

JUDGE: Please state your full name for the record.

CLAIMANT: Peter Golub.

JUDGE: Mr. Golub, I have as your mailing address 3921 South 2000 East in Holladay 84124. Is that correct?

CLAIMANT: That is correct, Your Honor.

JUDGE: All right. And the Department of Worker show you've chosen to receive correspondence from the Department of Workforce Services electronically. Is that correct?

CLAIMANT: Yes, Your Honor.

JUDGE: All right. I will send my decision to you electronically, but I did want to verify your mailing address. So going to place the witnesses for the employer under all of this, Mr. Bentley, do you solemnly swear or affirm that the testimony you will give will be the whole truth and nothing but the truth?

EMPLOYER WITNESS: Yes, Your Honor.

JUDGE: Please state your full name for the record.

EMPLOYER WITNESS: Wyatt Lane Bentley.

JUDGE: Mr. Bentley, what is your job title with the employer?

EMPLOYER WITNESS: Associate Director of Human Resources.

JUDGE: Thank you. DeMarie Hoover, do you solemnly swear or affirm that the testimony you will give will be the whole truth and nothing but the truth?

EMPLOYER WITNESS 2: I do.

JUDGE: Please state your full name for the record.

EMPLOYER WITNESS 2: DeMarie Hoover.

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JUDGE: Ms. Hoover, what is your job title with the employer?

EMPLOYER WITNESS 2: I'm an HR Teacher Specialist.

JUDGE: All right. Thank you. Mr. Trujillo wanted to verify the employer's mailing address with the Unemployment Insurance Division. I have as the employer's mailing address the mailing address for Employer Advocates at PO Box 9 in Midvale 84047. Is that correct?

EMPLOYER: That is correct, yes.

JUDGE: All right. And is there an email address that I could send my decision to rather than sending the decision through the mail, Ms. Trujillo?

EMPLOYER: Yes, absolutely. You can send that to Steve, S-T-E-V-E, at employeradvocates.com.

JUDGE: All right. Got it. Be looking for my decision there rather than through the mail. I'll go through the documents, I'll identify them for the record and give them an exhibit number. Beginning of exhibit number 1 is entitled Claim for Unemployment Benefits.

This is simply a copy of the initial claim for benefits filed by the claimant effective May 18th of 2025. And these are exhibits 1 through Exhibit 4.

Beginning with Exhibit 5 is entitled separation statement. This is information Mr. Golub provided to the department regarding the reason for his separation from the employer when he first filed his claim.

These are exhibits 5, 6, and 7. Mr. Golub does the information on Exhibits 5, 6, and 7 accurately reflect what you reported to the department at that time?

CLAIMANT: Yes, it does, Your Honor.

JUDGE: Thank you. Those are exhibits 5, 6, and 7. Exhibit number 8 is an additional letter from the claimant to the department. This goes on to exhibit number 9 as well. Mr. Golub, did you prepare Exhibit 8 and 9?

CLAIMANT: Yes.

JUDGE: Thank you. Exhibits 10 and 11 is the notice that was sent to the employer informing the employer the claimant had filed a claim for benefit, requesting information about his separation from the employer.

Exhibit number 12 is, looks like a copy of an email from the claimant to the employer dated Tuesday, May 13th of 2025. Mr. Golub, were you the one who prepared what's marked as exhibit number 12?

CLAIMANT: Yes, Your Honor.

JUDGE: Thank you. Exhibit number 13 looks like an email from Mr. Bentley to the claimant. Mr. Bentley, did you prepare the email there on exhibit number 13?

EMPLOYER WITNESS: Yes, sir.

JUDGE: Thank you. Exhibit number 14 is, looks like a screenshot of a statement there, and that's marked as Exhibit number 14. Exhibit number 15 is the department's decision. Exhibit 16 and 17 is the decision letter that was sent to the claimant.

And exhibit number 18 is the claimant's appeal letter of the department's decision. Mr. Golub, do you have any objection to any of the documents being entered into the hearing record?

CLAIMANT: I can't read exhibit 14. Is it fair on your guys' end?

JUDGE: It's pretty difficult for me to read. I think I was able to read most of it, but we could have the employer read that if there's Mr. Bentley, if you are able to read that for us for the record or if you have a clearer copy.

EMPLOYER WITNESS: Sure. On 5/10/20/25 Brenda Burns and myself had a phone call with Peter Golub. We were going to address some concerns that had been expressed by a school, see attached email.

When we reached Mr. Golub, he had seen the email, and since we were not calling to talk about the use of AI in Granite School District, he did not want to waste our time or his, sorry, he didn't want to waste our or his time and resign from Granite School District, signed by Wyatt Bentley.

JUDGE: All right, thank you. All right. So any objection to any of the documents being entered into the hearing record, Mr. Golub?

CLAIMANT: No.

JUDGE: All right. And Mr. Trujillo, any objection to any of the documents being entered into the hearing record?

EMPLOYER: No objection, Your Honor.

JUDGE: All right. Then I will receive the exhibit into the hearing record and will proceed with the testimony portion of the hearing. Let me go ahead and take your testimony, Mr. Golub. Could you tell me the beginning date of your employment with the employer?

CLAIMANT: I believe it was September 2023.

JUDGE: All right. What was your last day of work?

CLAIMANT: May 5th, 2025.

JUDGE: All right. What was your job title at the time of separation?

CLAIMANT: Substitute teacher.

JUDGE: All right. And what was your rate of pay?

CLAIMANT: So there were two, two ways that it was evaluated. The base pay was $25 and I think like 33 cents. But then if I worked consecutively for, I think I believe 15 days, then it was raised to $32 an hour.

JUDGE: Okay. All right. And Mr. Golub, did you quit your job with the employer?

CLAIMANT: I did not.

JUDGE: All right. Were you fired from your job?

CLAIMANT: So what had happened was on May, this was part of the exhibit that I had tried to submit. On May 5th. I tried to log into Frontline, which is the management system, the way that you get a job is you log into the system and you find a task and then you go in and you teach.

That's the only way that you can teach for the Granite School District substitute teacher is if you can log into Frontline and find, find, you know, it can be a day of substituting. It can be up to, I think, one time I substituted for eight months.

Not exactly the same place, but I had to log into Frontline to continue doing that. And on May 5th, I was unable to do it. My account had been deactivated. So that was what I had an exhibit when I tried to submit.

And so there was no way that I could work after May 5th and I was never that account was never activated. And then on December 10th, so not only could I not log into my Frontline account. My other school district accounts had been deactivated.

So exhibit B on May 10th. I guess this email from the Granite School District saying that your account has been deactivated. And this is because there's multiple accounts. And this other account that has been deactivated May 10th was for other jobs that I was looking for, because I was really trying to get a long term position with the Granite

School District.

I put in considerable time going through all sorts of preparations. I took a lot of classes. And my goal was to get a full time position with the Granite School District. And so starting in the fall in 2025, hopefully I would be closer to or have a job teaching English [unintelligible] humanities.

I also submitted application to teach biology as an undergraduate I did study biology. And I have a pretty good concept of like contemporary, you know, basic in biology. So I was trying to not only do substitute teaching, but I was trying to get a full-time position.

But on May 5th, my account's deactivated, and on May 10th, I actually got an email to my Gmail saying that it hasn't deactivated. The problem with having your account deactivated is that I couldn't go in and see.

Not only did I not apply for a substitute pass, but I couldn't go into the system and look at any of my other accounts that were set up. And then my email account was closed and deactivated on May 15th.

So I have no access to any of the emails that have been submitted in the exhibit. And as they are submitted partially, I will try to say that they shouldn't be submitted or used in this trial because I don't have access to any of that information.

JUDGE: Let me go back to May 5th when you found this was deactivated. Did you call the employer and ask why?

CLAIMANT: I did.

JUDGE: Your account was deactivated?

CLAIMANT: Oh, yes, I did. Yes, I sent many emails and I tried to call them. And but I finally did get a response about a week later. It was regarding something completely different that had happened in April.

It had happened weeks before that I had no correspondence regarding that incident. And all of the emails that I sent prior to that have now been submitted as a exhibit.

JUDGE: Hold on. Hold on just a moment. Who did you speak to when you called and spoke with someone?

CLAIMANT: No, I called, but I couldn't get anyone on the phone.

JUDGE: So what happened when you called? I mean a school district should be answering their phone at some point.

CLAIMANT: Well, what I did is I sent emails.

JUDGE: But I thought you said you called though?

CLAIMANT: I did call.

JUDGE: Okay. And what would happen when you would call?

CLAIMANT: I just got, I mean, I can't remember exactly, but it wasn't, you know, I can, I don't remember the message that I got when the automatic methods kicked in. But what I did do after that was that I sent multiple emails about my deactivation.

JUDGE: And who did you send that to?

CLAIMANT: I believe Mr. Bentley and the other person I was working with. I can't remember her name, but I sent them to, Granite School District, I had contact with two Granite School District employers [unintelligible].

I sent those emails to definitely Mr. Bentley, but I, but I, I assume I sent it to both of them as our correspondence involved. Not just him, but other Granite School District.

JUDGE: All right. You mentioned something else that happened on May 10th. What happened again on May 10th?

CLAIMANT: So on May 10th, this is what I try to submit, on my end, it's an email that I got. This is the only email I have as I don't have access to my Granite School District email, but this is an email that was sent to my Gmail because part of my Granite School District ID has also my Gmail address.

JUDGE: Okay. Just related to that account being deactivated?

CLAIMANT: Yeah.

JUDGE: Okay. I understand that. I don't need for you to go back into that. I just wanted to clarify that. So we have this email from Mr. Bentley dated May 13th. That's the exhibit number 13. Did you receive that from him asking you to provide explanation about these issues?

CLAIMANT: I did. Yeah.

JUDGE: So did you understand when you received this that you had not been discharged from your job?

CLAIMANT: Well, I was, well, so I had, so once you have your account deactivated, you are, you

can't, it's not like you can continue to work. You can't, you know, you can't just show up to a school.

JUDGE: But that's not what I'm asking. I'm not asking about that. Why would they be sending you this email asking you to explain if you were no longer an employee with the employer?

CLAIMANT: Well, that is very curious to me because not only did this email not address my, what I had said in my previous emails, it addressed something that I had no knowledge of that was an issue until that email and I, I was very confused.

JUDGE: Well, in your response, you talk about you don't have any plans to work for Granite School District, but I mean, if you thought you were already fired, why would you have plans to work for them?

CLAIMANT: Well, exactly, exactly.

JUDGE: But that's what I'm asking. Why would you, why would you even respond if you had been discharged, it wouldn’t make any sense to really response?

CLAIMANT: Well, because I, because I very much want, wanted to continue working. I mean, I was confused, but my ultimate argument is that I definitely wanted to continue working for them, which is why I was putting together this large document about AI and education.

Because I've seen many, many [unintelligible] the Granite School District and had been talking to other teachers and I've been working on this for some time and my ultimate goal, which is why I wanted to discuss AI when I, I thought I was going to meet with them.

Because, you know, not only did I want to continue being a substitute teacher, I wanted to be a full-time teacher and I wanted to be part of what I believe to be an inevitable process of using AI tutors like the Khan Academy to help especially low-income students.

JUDGE: Hold on, hold on, hold on, you're giving a little more detail about that than I need. If you absolutely wanted to continue working for the employer, why would you tell them that you're not planning on working for them?

CLAIMANT: Well, so I would still be happy to work for them. I was under the impression that they had already, you know, deactivated all my accounts, so I couldn't work for them anymore and I believed that if, quite honest I was confused.

I did want to keep working for them and then I was under the impression that they had, you know, basically terminated my employment and as I believed that.

JUDGE: In this email, I mean, if that was your issue, you were confused and you didn't know what was going on. While we have this email, I don't see anything in here about you asking to clarify and whether you were employed.

You never ask, am I discharged or do I not have a job or do I have a job or you don't say, hey, I've already been discharged, why am I getting this email at this point? You don't seem to be mentioning any of that in this email on exhibit number 12.

CLAIMANT: Well, I was under the impression that under Utah law and most laws, that if an employee is prevented from attending their job, that they do not have a job.

JUDGE: I understand that, what, I understand that's your statement and your argument, but I'm asking in, in that email on exhibit number 12, you never make reference to anything like that about you already being discharged, that you were deactivated, you're no longer an employee, so, you know, why are you sending me work-related email?

I've already been discharged, but you don't say anything like that in that exhibit number 12. You just go on and explain your issues and your concerns and then you tell the employer you're not planning on working for them anymore.

CLAIMANT: I was, I was under the impression that by May 5th, I had essentially been terminated.

JUDGE: All right. Did you tell Mr. Bentley over the telephone that you were resigning your position?

CLAIMANT: No, I did not.

JUDGE: Okay. When you spoke with the Department of Workforce Services representative, you told them that you had not been discharged from your job. Do you, do you know why you told the Department over the phone that you had not been discharged from your job?

CLAIMANT: Yes, I was slightly confused about the language, right. So I was under the impression that discharge meant that I had been fired with just cause, and so I wanted to make the point that I, that when they deactivated my account.

The reason that they gave, which was the issue that had happened in April, in April, was not the reason that they had initially deactivated my account. So I was a little bit confused with what exactly the language meant at that time.

JUDGE: So on exhibit number, exhibit number seven, your conversation with the Department representative, you talk about being in a meeting with the employer and you told the Department you left the meeting and did not return to work. Is that true?

CLAIMANT: Well, I couldn't have, I was unable to go to work starting May 5th.

JUDGE: So that's not what you told the Department, you just said you left the meeting and you never returned to work. Did you tell them that?

CLAIMANT: What is this, exhibit six?

JUDGE: Exhibit seven at the top.

CLAIMANT: Okay, let's see.

JUDGE: Second line, it says he left the meeting and did not return to work. And then the next line states, states that he was never discharged or told he was discharged. So you're making this distinction between doing discharge for just cause and just being discharged there in your statement.

Did you, did you tell the Department you had never been discharged? You were not discharged or told you were discharged?

CLAIMANT: I was trying to, as I am now, I was trying to make some points. I mean, at this point in time, I haven't really looked into the specific legalities of the language, but my understanding then and now was that on May 5th, I was discharged because I could not work. All of my accounts were deactivated.

JUDGE: All right. All right. Any other testimony you would like to provide about the reason for your separation from the employer?

CLAIMANT: Not at this time, Your Honor.

JUDGE: Okay. Mr. Trujillo, do you have any questions for Mr. Golub?

EMPLOYER: No questions, your honor.

JUDGE: All right. Who would you like to have testified first for the employer, Mr. Trujillo?

EMPLOYER: Wyatt will be the main witness, DeMarie, will more than just be an observer at this point.

JUDGE: If she definitely will be an observer, she can stay. If she may be providing testimony, she would need to leave [crosstalk] [00:35:54] testimony at this point. So do you want her to stay or?

EMPLOYER: Yeah, she'll stay as an observer.

JUDGE: Okay. All right. Mr. Bentley, can you tell me the beginning date of the claimant's employment with the employer?

EMPLOYER WITNESS: Yes. Just one moment. Hired first 7/14/23, but of course, wouldn't have started subbing until school kids were back in school.

JUDGE: Okay. What was his last day actually work?

EMPLOYER WITNESS: 5/5/ of '25.

JUDGE: All right. What was his, sorry, he indicated he was a substitute teacher. Is that right?

EMPLOYER WITNESS: Correct.

JUDGE: And what was his rate of pay?

EMPLOYER WITNESS: $25.84.

JUDGE: Okay. All right. Mr. Bentley, the claimant testified that he was locked out or his account was deactivated with the school district on May 5th of 2025. Do you know if that's true?

EMPLOYER WITNESS: It is. When we have either a level of concern that's raised from a school or multiple situations, we do block subs from taking positions until we can do an investigation and reach out to them.

JUDGE: All right. And had the employer made the decision to discharge him at that time?

EMPLOYER WITNESS: We had not.

JUDGE: All right. Did the employer consider him to be on probation or on suspension at that time?

EMPLOYER WITNESS: With our hourly employees or our substitutes, we don't necessarily consider probation. It's just depending on the concerns, the level that they rise to or how many we've had, we'll just say we want to, I guess it would be an informal probation, but not necessarily something that's formal, no.

JUDGE: Okay. And when the employer does that, I mean, on the day that that happens, did the employer inform Mr. Golub that he was being deactivated on that day because of concerns?

EMPLOYER WITNESS: We send out an email to them to let them know so that they'll make an appointment with us. Sometimes what happens, I don't think this was in this, if it wasn't in this situation, but yes, we do reach out to them, let them know that we need to have an appointment with them so that we can and ask them to schedule an appointment, so we can have that conversation, give them their opportunity to explain their side of things.

JUDGE: So was that sent out on May 5th when he was deactivated?

EMPLOYER WITNESS: You know, I'm going to be honest with you. I don't have the date that it was sent out. I would have to go back and look, but yes, that's our practice is to do at the same date that they are suspended, that they're deactivated.

JUDGE: Is that a different letter or email than the one we have in the record that you prepared and sent to him on the 13th, which is the exhibit number 13?

EMPLOYER WITNESS: It is.

JUDGE: Okay.

EMPLOYER WITNESS: Yes, it's a different letter. It doesn't typically, it has just a brief overview of the situation, not as much detail as that requested. And it just lets them know that there has been a complaint to that we need to set up an appointment so we can have that conversation.

JUDGE: And you leave that up to them to call back to set the appointment?

EMPLOYER WITNESS: Correct. Yeah.

JUDGE: Okay. The claimant testified that he emailed you and tried to call you on the 5th and in the days thereafter about why his account had been deactivated and didn't receive any response. Can you respond to that?

EMPLOYER WITNESS: I can say I did get an email on the 5th. However, I will be honest with you. I didn't see anything about a question about why the account has been deactivated. Most of it is talking about using AI and the disservice that we're doing to our students by not using AI to help take them, but help them along the way.

JUDGE: All right. When was the first time you spoke with him after his account had been deactivated in the system?

EMPLOYER WITNESS: I believe speaking to him on the phone was on the 15th, if I remember correctly.

JUDGE: All right. Tell me what happened in that conversation.

EMPLOYER WITNESS: Oh, I apologize. It was the 10th. It was on the 10th.

JUDGE: Tell me what happened on the 10th?

EMPLOYER WITNESS: We'd had a little bit of a confusion with getting ahold of him. He was, he'd been in the shower or was getting into the shower as we called him initially. I'd made a mistake apparently on the time.

So then we called him back in between that time and when I called him back, he'd gotten the email and basically when he talked to me on the phone, he then said, well, I can see that you don't want to address my concerns with AI.

Therefore, I don't want to waste your or my time. And I'm not planning on coming back to work in Granite School District.

JUDGE: All right. Was the claimant going to be discharged because of these complaints against him that's in your email?

EMPLOYER WITNESS: A lot of that would have been determined based off of his conversation with us through that interview process. And so, at that point in time, I wouldn't have been able to say he was going to be discharged for those things.

JUDGE: So you indicated at some time on the 10th, he received the email, which email are you referring to?

EMPLOYER WITNESS: The one that's in the exhibit. What's the question [crosstalk] [00:42:28].

JUDGE: Okay. That's dated May 13th. So exhibit number 13

EMPLOYER WITNESS: Well, I'm going to be honest with you, I know and I must have the wrong date then because it would definitely have been, it would have been following that one. So it would have been after that date. So I apologize for that.

JUDGE: Okay. And then did you receive the claimant's email response on the 13th? Which is exhibit number 12?

EMPLOYER WITNESS: Yes. Let me, let me double check. Yes, I did. Okay. On the 13th, correct.

JUDGE: Right, right. And had you received his response before or after you had spoken to him?

EMPLOYER WITNESS: It was after.

JUDGE: Okay.

EMPLOYER WITNESS: Well, I should say I saw it after I spoken to him. Yes.

JUDGE: Okay. And so in the phone conversation, he indicated he did not want to come back. He did not want to work for Granite any longer. Is that right?

EMPLOYER WITNESS: Correct. That was my understanding.

JUDGE: Do you recall his exact words to that effect that led you to understand he wasn't coming back or that he was quitting his job?

EMPLOYER WITNESS: I don't, to be fair, with you the exact wording. I just remember that he didn't feel there was any need to proceed with answering these questions or going through this interview process because it was going to be a waste of both of our time and he didn't intend to be with us in the future.

JUDGE: Okay. All right. In the conversation you had with him, was there any discussion about whether he had already been discharged or his confusion about thinking that he had already been discharged?

EMPLOYER WITNESS: No, sir. There was no.

JUDGE: All right. All right. All right. Any other testimony you'd like to provide about the reason for the climate separation from the employer, Mr. Bentley?

EMPLOYER WITNESS: No.

JUDGE: All right. Mr. Trujillo, do you have any questions for Mr. Bentley?

EMPLOYER: No questions, Your Honor.

JUDGE: Any questions for Mr. Bentley, Mr. Golub?

CLAIMANT: Yes. So during that last, our last conversation, did I say I am resigning or I quit or anything like that?

EMPLOYER WITNESS: There was something that led me, I'm going to be honest, I don't remember the exact words that you used, but it was to the effect of it would be pointless to move forward with the conversation with the questions we had because you weren’t planning on being with us in the fall.

CLAIMANT: So I said I don't plan to be with you on the fall?

EMPLOYER WITNESS: It was pointless for us to continue with those because it was yes.

CLAIMANT: So I'm sorry, just to clarify. So you're saying that I said I plan not to be with you in the fall?

EMPLOYER WITNESS: That was that. That was the, I don't remember the exact words that you

used, but yes, but there was no need to go forward with this conversation and these inquiries that we had because you weren't planning to be with us anyways.

CLAIMANT: Okay. So let's just, so I'll just repeat my question. So I said there is no point being with you anymore because I don't plan to be with you in the fall. Is that what I said?

JUDGE: He's already answered the question. Yeah, he's answered the question two or four times.

CLAIMANT: Okay. Sorry, I just wanted to clarify.

JUDGE: Right, but he's already said he doesn't remember exactly what you said. So that was the same.

CLAIMANT: Okay. I apologize. Yeah, no further questions, Your Honor.

JUDGE: All right. Any other testimony you'd like to provide, Mr. Gullib?

CLAIMANT: Yes. Well, are these my closing remarks or should I?

JUDGE: This is just testimony at this point. I don't know if I need closing. If you want to make a closing argument, I can give you that opportunity, but now it's time for testimony. I don't need for you to repeat anything, but any additional testimony you'd like to provide?

CLAIMANT: I would if it's possible just to put into the record the timeline as I think it was. So on May 5th, my Frontline is disabled, so I cannot accept jobs. Between May 5th and May 12th, I make multiple attempts to contact Mr. Bentley and the Granite School District regarding not being able to work.

On May 10th, I get a Gmail notice from the Granite School District of my application for these other jobs being deactivated. On May 13th, I get my first written response. I still have no access, so on May 15th, I do get some sort of response from Mr. Bentley.

On May 15th, we have a content call, and then on May 18th, I apply for unemployment, and on June 17th, I get the denial of benefit, and on the 28th of June, we have the appeals docket hearing for July 8th. That's just the timeline that I have.

JUDGE: At some point after -- at some point, did you start looking for other full-time work?

CLAIMANT: After May 15th, where I was free, at around the third week of May, I start looking for work, which is when I applied for unemployment. I hadn't even really considered that until my mother told me that I was eligible for unemployment, so then that's when I filed for unemployment.

JUDGE: Okay. The claim is effective April, or sorry, May 18th, but you actually filed the claim on

May 23rd. It's always effective on the Sunday of the week in which you apply.

CLAIMANT: Okay.

JUDGE: So exhibit number one at the top of the document shows that you filed the claim on May 23rd, and then it's effective that Sunday of that week which is the 18th, so any other testimony you'd like to provide?

CLAIMANT: Not at this time, Your Honor.

JUDGE: All right, any other questions for the claim, Mr. Trujillo?

EMPLOYER: No, Your Honor.

JUDGE: Any other testimony from the employer, Mr. Trujillo?

EMPLOYER: No, Your Honor.

JUDGE: Did you want to make a final statement or a brief final argument, Mr. Golub?

CLAIMANT: Sure, so I believe the record shows two undisputed facts. First, on the 5th of May, Granite shut off my credentials, which is the only doorway to teaching. Then, Granite never restored access and/or issued any final warning.

I was never asked, like, what are you quitting? I believe under Clearfield City and Armstrong [phonetic] the unilateral lockout is a discharge, not a quits, and the employer has offered no evidence [unintelligible] conduct.

Alternatively, even if you were to label the quits, leaving after your tools are taken, quitting was good cause under equity and good conscience. I therefore ask for benefits to be allowed and retroactive for may be weekly payment [unintelligible].

JUDGE: All right, thank you, Mr. Trujillo, any final statement?

EMPLOYER: Yes, Your Honor. Nothing shows any indication of a discharge, but there is evidence in the claimant's own words in the form of an email and testimony. And a misunderstanding of what happened does not change that fact. And we ask that the decision remain as is.

JUDGE: All right, then we'll go and close the hearing. At this time, I want to thank for participating in the hearing and I'll let you a written decision and send you a copy of my decision.

If you've not received the decision within 10 days, feel free to call the appeals office and let them know. We want to make sure you receive the decision and receive it in a timely

manner.

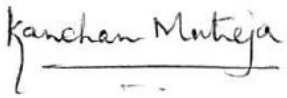
So, thanks again, we'll close and I get that decision out as soon as possible.

EMPLOYER: Thank you.

JUDGE: You're welcome. Goodbye.

CLAIMANT: Thank you very much, Your Honor.

JUDGE: You're welcome. Goodbye.

P R O C E E D I N G S

1
2 REPORTER'S CERTIFICATE
3
4 I, Kanchan Mutreja, do hereby certify that I typed the foregoing
5 pages, numbered from 1 through 23, inclusive, from a tape recording and that to
6 the best of my knowledge they constitute a full, true and correct report of the
7 hearing in the foregoing matter.
8
9 Secaucus, New Jersey
10 July 18, 2025